

23STCV12267 23STCV12267

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-07-09

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C07%2F09%2F2026

Source SHA-256: 3811b2dd7c9fe6e6ea47c00e0e53d07586b0f1f4019d4252d3d7bc8aaa56dac2

Case Number: 23STCV12267 Hearing Date: July 9, 2026 Dept: 617

Dept.

617

Date:

7-9-26

Case

#: 23STCV12267

Trial

Date: 9-14-26

SUMMARY ADJUDICATION

MOVING

PARTY: Defendant, American Honda Motor Co., Inc.

RESPONDING

PARTY: Plaintiff, Esdras Cristobal Hernandez

RELIEF

REQUESTED

Motion

for Summary Adjudication as to Second and Third Causes of Action

SUMMARY

OF ACTION

This

is a lemon law action. Plaintiff Esdras Cristobal Hernandez sued Defendant American Honda Motor Co., Inc. alleging Defendant failed to promptly replace his car or make restitution after it was unable to conform the car to its express warranty after a reasonable number of repair attempts. Plaintiff also asserts claims for breach of implied warranty and violation of section 1793.2, subdivision (b), of the Song-Beverly Act (SBA).

RULING: Denied.

Request for Judicial Notice:

Granted.

The Court takes judicial notice of the existence of the superior court order and the truth of the results reached therein. (Lockley v. Law Office of Cantrell, Green, Pekich, Cruz & McCort (2001) 91 Cal.App.4th 875, 885-86.)

Defendant

moves for summary adjudication as to Plaintiff's second and third causes of action for breach of implied warranty and violation of section 1793.2, subdivision (b) of the SBA. It argues that Plaintiff's claims fail as a matter of law. Plaintiff opposes the motion, maintaining the existence of triable issues of material facts. Defendant's motion is denied.

The pleadings frame the issues for motions, "since it is those allegations to which the motion must respond. (Citation.)" (Scolinos v. Kolts (1995) 37 Cal. App. 4th 635, 640-641; FPI Development, Inc. v. Nakashima (1991) 231 Cal.App.3d 367, 382-83; Jordan-Lyon Prods., LTD. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1472.) The purpose of a motion for summary judgment or summary adjudication "is to provide courts with a mechanism to cut through the parties' pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 843.) "Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary judgment if all the evidence submitted, and 'all inferences reasonably deducible from the evidence' and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On

a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scaif v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment

“has met his or her burden of showing that a cause of action has no merit if

the party has shown that one or more elements of the cause of action . . .

cannot be established.” (Code Civ.

Proc., § 437c, subd. (p)(2).) “Once the defendant . . . has met that burden,

the burden shifts to the plaintiff . . . to show that a triable issue of one or

more material facts exists as to the cause of action or a defense thereto.” (Ibid.)

“When

deciding whether to grant summary judgment, the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Avivi v. Centro Medico

Urgente Medical Center (2008) 159 Cal.App.4th 463, 467; see also Code

Civ. Proc., § 437c, subd. (c).) “An issue of fact can only be created by a

conflict in the evidence. It is not created by speculation, conjecture,

imagination or guesswork.” (Lyons v.

Security Pacific National Bank (1995) 40 Cal.App.4th 1001, 1041 (citation omitted).)

Second

Cause of Action: Breach of Implied Warranty

Defendant

has not met its burden as to Plaintiff’s breach of implied warranty cause of

action. It argues that Plaintiff’s claim fails because the car did not contain

defects during the implied warranty period. The duration of the implied

warranty of merchantability is coextensive with an express warranty but is not

to exceed “one year following the sale of new consumer goods to a retail buyer.”

(Civ. Code, § 1791.1, subd. (c).) Here, the car was leased on October 30, 2019

and therefore the implied warranty expired a year later on October 30, 2020.

[Compendium Ex. 1: Motor Vehicle Lease Agreement (HERNANDEZ V. AHM – 000008-000010).] The car was presented once during the implied warranty period on June 23, 2020 for routine maintenance. [Id. Ex. 2: Plaintiff’s Depo.

pp. 113:6-114:17; id. Ex. 3: June 23, 2020 Repair Order (AHM002248-002251).]

However, this is immaterial because it does not show that the car was merchantable during the implied warranty period. At most, Defendant's evidence shows that the defect may have been discovered after the implied warranty period expired, which is distinct from the existence of a defect making a good unmerchantable. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1308.) Defendant is therefore not entitled to summary adjudication on this claim.

Third

Cause of Action: Violation of SBA section 1793.2, subdivision (b)

Defendant

also fails to meet its burden as to Plaintiff's claim for breach of section 1793.2, subdivision (b) of the SBA. Defendant contends that this claim fails because there is no evidence that any repair presentation was not commenced within a reasonable time or lasted more than 30 days. The SBA imposes certain obligations on manufacturers of consumer goods (i.e., new goods) who expressly warrant those goods. (Civ. Code, §§ 1791, subd. (a), 1793.2, subd. (a).) Among these obligations is a requirement that the manufacturer commence service and repair within a "reasonable time," and "[u]nless the buyer agrees in writing to the contrary," to service or repair the goods "so as to conform to the applicable warranties within 30 days." (Id. § 1793.2, subd. (b).) The plain meaning of the statute indicates that goods must be conformed to warranty within 30 days, not that any repair attempt must not exceed 30 days. Thus, Defendant's argument and supporting evidence that the longest time Plaintiff's car was out for repairs was 8 days is immaterial. [Compendium Ex. 1: Repair Orders (*HERNANDEZ V. AHM – 000011-000033*).] If Defendant was unable to conform the car to warranty within 30 days, it was not in compliance with the provision. (See *Cummins, Inc. v. Superior Court* (2005) 36 Cal.4th 478, 485 ["Goods must be repaired to comply with the warranty within 30 days, unless delay is caused by conditions beyond the control of the manufacturer or its representative"].)

Defendant's

authority to the contrary is unavailing. Defendant cites to an unpublished Ninth Circuit decision, where the court held that "under any reasonable reading of the statute, § 1793.2(b) requires only that BMW complete any single repair attempt within 30 days." (*Schick v. BMW of North America, LLC* (9th Cir. 2020) 801 Fed.Appx. 519, 521) But the court's conclusion is unpersuasive because it does not explain why its interpretation is correct. If the

legislature intended that goods be out of service due to repair for more than 30 days, it would have said so. (See Civ. Code, § 1793.22, subd. (b)(3) [presumption that reasonable number of repair attempts made if the “vehicle is out of service by reason of repair of nonconformities by the manufacturer or its agents for a cumulative total of more than 30 calendar days since delivery of the vehicle to the buyer”].) Defendant is therefore not entitled to summary adjudication on the section 1793.2, subdivision (b) claim.

Defendant's
motion is therefore denied.

Defendant to